

Court No. - 32

Case :- WRIT - C No. - 9487 of 2011

Petitioner :- Arjun Singh

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Vineet Saran,J.

Hon'ble Ashok Srivastava,J.

On the request of Shri Pankaj Kumar Shukla, learned counsel for the respondents, put up this matter on 24.2.2011 to enable him to seek instructions. It is made clear that the application for interim order shall be considered on the said date even if the instructions are not received.

Till then the respondents-authorities shall not open the meter, however, they shall be at liberty to send the meter for examination before independent authority.

Order Date :- 18.2.2011

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Chief Justice's Court

Case :- WRIT - C No. - 9487 of 2011

Petitioner :- Arjun Singh

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Vineet Saran,J.

Place the matter on Board on 3.3.2011 in the additional cause list.

Interim order granted earlier stands extended till then.

Order Date :- 24.2.2011 (Vineet Saran,J) (F.I.Rebello, CJ)
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Chief Justice's Court

Case :- WRIT - C No. - 9487 of 2011

Petitioner :- Arjun Singh

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Ferdino Inacio Rebello,Chief Justice

Hon'ble Vineet Saran,J.

Place the matter on Board on 8.3.2011 in the additional cause list.

Interim order granted earlier is extended till then.

Order Date :- 3.3.2011

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(Vineet Saran, J.)

(F.I. Rebello, C.J.)

Court No. - 35

Case :- WRIT - C No. - 9487 of 2011

Petitioner :- Arjun Singh

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

Put up tomorrow.

Interim order already granted shall continue till tomorrow.

Order Date :- 8.3.2011

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Court No. - 35

Case :- WRIT - C No. - 9487 of 2011

Petitioner :- Arjun Singh

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

Shri Pankaj Kumar Shukla is allowed one week's further time to file counter affidavit. List on 16.3.2011 in the additional cause list.

Order Date :- 9.3.2011

RKP

Court No. - 3

Case :- WRIT - C No. - 9487 of 2011

Petitioner :- Arjun Singh

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

As jointly prayed for, let this writ petition appear tomorrow i.e. 29.03.2011.

Order Date :- 28.3.2011

MAA/-

Court No. - 3

Case :- WRIT - C No. - 9487 of 2011

Petitioner :- Arjun Singh

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

The petitioner, being a consumer of electricity, under Paschimanchal Vidyut Vitran Nigam Limited, Moradabad has contended that his arguments are in two parts. Firstly, he contended that in view of the Clause 8.1 (vii) of U.P. Electricity Supply Code, 2005 the consumer's meter, on a prima facie case, shall be removed, properly sealed and tested in accordance with the procedure laid down in clause 5.6. Secondly, thereafter the supply shall be restored through a new meter or metering equipment of appropriate rating.

According to the petitioner he is a domestic consumer. The first part has been complied with but the second part has not been complied with. Therefore, an appropriate order is required to be passed by this Court.

According to the respondents, the petitioner was utilising the domestic connection into the commercial connection, therefore, it is a case of theft and therefore, such type of consumer should not be given any supply unless, of course, a condition is imposed upon him.

The petitioner has contended, in reply thereto, that the petitioner is an advocate, therefore, his chamber consumption cannot be said at all a commercial consumption.

In any event it appears to us that minimum charges are required to be paid until a meter is installed in the premises of the petitioner. Such minimum charges are required to be paid within 24 hours and accordingly, it is to be paid in future also from time to time, as per the bills. If any arrears is there the same will be payable within a period of 15 days from the date of the order.

So far as supply is concerned, that can be given effect subject to deposit of Rs.50,000/-, on an undertaking on the part of the respondent-corporation that if a satisfactory result is given by the independent testing agency and the ultimate decision of the authority comes that the allegation against the consumer is

unsustainable in nature, the amount will be refunded back.

We therefore direct the petitioner to deposit half of the above mentioned amount i.e Rs.25,000/- along with the minimum charges within 24 hours and the rest amount will be deposited within 15 days thereafter. Subject to such deposit, the electricity connection will be given to the petitioners within a period of 72 hours thereafter.

This direction will be followed immediately irrespective of the availability of a certified copy of the order as the order has been passed in presence of both the parties.

The writ petition is accordingly disposed of, however, without imposing any costs.

Order Date :- 4.5.2011

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